

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #6	CCRB Case #: 202106863	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/07/2021 6:00 AM	Location of Incident: § 87(2)(b)	Precinct: 40	18 Mo. SOL 4/7/2023	EO SOL 4/7/2023	
Date/Time CV Reported Thu, 11/11/2021 6:21 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 11/11/2021 6:21 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Nelson Nin	05300	950955	NARCB BX
2. LT Steven Degree	00000	943141	NARCB BX
3. DT3 Donald Sehl	01527	951232	NARCB BX
4. An officer			NARCB BX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Ezequiel Martinez	01763	941069	NARCB BX
2. CPT Joe Pulgarin	00000	942914	DBBX
3. SGT Matthew Pereira	04497	944885	NARCB BX
4. DT3 Ruben Alvarez	02506	929624	NARCB BX
5. DT3 Edgar Clases	01550	936360	NARCB BX
6. DT3 William Murray	04692	918049	NARCB BX
7. DT3 Anthony Rumph	06686	913189	NARCB BX
8. DT2 Anthony Acosta	00164	896914	NARCB BX
9. LT Jose Rosario	00000	918253	NARCB BX
10. DT3 Abdiel Anderson	01429	932254	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Donald Sehl	Abuse: Detective Donald Sehl entered § 87(2)(b) in the Bronx	§ 87(2)(b)
B.DT3 Donald Sehl	Abuse: Detective Donald Sehl searched § 87(2)(b) in the Bronx.	§ 87(2)(b)
C.DT3 Donald Sehl	Abuse: Detective Donald Sehl damaged § 87(2)(b)'s property.	§ 87(2)(b)
D. An officer	Abuse: An officer damaged § 87(2)(b)'s property.	§ 87(2)(b)
E.DT3 Donald Sehl	Abuse: Detective Donald Sehl refused to show the search warrant to § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
F.DT3 Nelson Nin	Discourtesy: Detective Nelson Nin spoke discourteously to § 87(2)(b)	
G.LT Steven Degree	Abuse: Lieutenant Steven Degree threatened to notify Administration for Children's Services.	
H.DT3 Donald Sehl	Abuse: Detective Donald Sehl failed to provide § 87(2)(b) with a business card.	

Case Summary

On November 11, 2021, § 87(2)(b) filed this complaint with the CCRB via the online website.

On October 7, 2021, at approximately 6 a.m., § 87(2)(b) was in her apartment, located at § 87(2)(b) in the Bronx, with her four children when Det. Donald Sehl along with Det. Nelson Nin, Lt. Steven Degree, and other members of the Bronx Narcotics Squad entered and searched her apartment (**Allegation A, B, and C – Abuse of Authority, § 87(2)(g)**). An officer damaged § 87(2)(b)'s dresser and son's toy piano (**Allegation D – Abuse of Authority: § 87(2)(g)**). § 87(2)(b) asked to see a copy of the search warrant, and Det. Sehl allegedly refused to show it to her (**Allegation E – Abuse of Authority: § 87(2)(g)**). Det. Nelson Nin allegedly stated that § 87(2)(b)'s child smelt like "shit" (**Allegation F – Abuse of Authority: § 87(2)(g)**). Lt. Degree threatened to notify ACS (**Allegation G – Abuse of Authority: § 87(2)(g)**). Det. Sehl allegedly failed to provide § 87(2)(b) with a business card (**Allegation H – Abuse of Authority: § 87(2)(g)**). No arrests or summonses resulted from this incident.

There is no video evidence regarding this incident as Narcotics officers are not assigned BWC.

Allegation A – Abuse of authority: Detective Donald Sehl entered § 87(2)(b) in the Bronx

Allegation B – Abuse of authority: Detective Donald Sehl searched § 87(2)(b) in the Bronx.

Allegation C – Abuse of Authority: Detective Donald Sehl damaged § 87(2)(b)'s property.

It is undisputed that on October 7, 2021, at 5:30 a.m., officers entered and searched § 87(2)(b) in the Bronx under search warrant #§ 87(2)(b) (**Board Review 01**). The warrant, requested by Det. Sehl and issued by New York Criminal Court Judge § 87(2)(b) on § 87(2)(b), authorized a no-knock entry of § 87(2)(b), between the hours of 6:00 a.m. and 9:00 p.m. without prior notice, for officers to enter and search the location for evidence of distribution, possession with intent to distribute, controlled substances, and to connect persons found therein to the premises by personal papers and effects. § 87(2)(g)

§ 87(2)(b) alleged that her front door was damaged during the entry (**Board Review 03**).

§ 87(2)(b) provided photos of the damage to her front door (**Board Review 16, 17**).

Article 690.50 of the Criminal Procedure Law permits officers who have obtained a valid judge-issued search warrant to enter and search the location. (**Board Review 02**)

§ 87(2)(g)

Allegation D – Abuse of Authority: An officer damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that after the officers finished searching her apartment, she noticed that her dresser drawers were damaged, a toy piano was thrown onto the floor and damaged, and that officers stepped on her son's toys and books (**Board Review 03**).

Photos provided by § 87(2)(b) show a dresser with the fronts of drawers removed and items scattered (**Board Review 04, 05**).

There is no BWC footage of this incident (**Board Review 06**).

Det. Sehl testified that he searched the dresser and pulled out the drawers. He testified that he found the dresser in the condition that it was in and did not damage it. He denied breaking a piano and did not see any officers step on any children's toys or books. Det. Sehl testified that the entire apartment was covered with 1-2 feet of belongings and garbage, and that it was not possible for the officers to walk through the apartment (**Board Review 07**).

Det. Nin testified that he did not see any officers deliberately damage any items. He stated that it was possible that officers inadvertently stepped on items in the apartment because almost all of the floor was covered in piles of belongings and garbage (**Board Review 08**).

Lt. Degree testified that he did not see dresser drawers that were broken, nor did he see a toy piano that was broken (**Board Review 09**).

§ 87(2)(b) alleged that after the officers were finished searching, she discovered damage to her dresser and a toy piano, but she did not see the officers that caused the damage. Each officer testified that they did not see any property be damaged nor did they damage property. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation E – Abuse of Authority: Detective Donald Sehl refused to show the search warrant to § 87(2)(b)

§ 87(2)(b) alleged that while the officers were searching, she repeatedly asked the officers to see the warrant. Det. Sehl replied that the warrant was downstairs and that someone would get it, but ultimately § 87(2)(b) was never shown the warrant despite her request (**Board Review 03**).

There is no BWC footage of this incident (**Board Review 06**).

Det. Sehl testified that § 87(2)(b) asked him to see the warrant and he told her that he would show it to her when they were done with the search. At the end of the search, Det. Sehl showed § 87(2)(b) a copy of the warrant and allowed her time to read it (**Board Review 07**).

Det. Nin testified that he saw Det. Sehl show § 87(2)(b) the warrant (**Board Review 08**).

Lt. Degree testified that he did not hear § 87(2)(b) request to see the search warrant. However, after the incident, Det. Sehl told him that he had showed it to her (**Board Review 09**).

§ 87(2)(b) testified that despite her asking to see a copy of the search warrant, that no officer showed it to her. Det. Sehl testified that he showed § 87(2)(b) a copy of the warrant, and his statement is supported by Lt. Degree and Det. Nin who both testified that Det. Sehl showed § 87(2)(b) the warrant. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation F – Discourtesy: Detective Nelson Nin spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that while the officers searched her apartment, Det. Nin, who was standing approximately six feet away from her, said to another officer that § 87(2)(b)'s autistic child "smells like shit." § 87(2)(b) child was not interviewed because § 87(2)(b) stated that her child has limited speech capabilities **(Board Review 03)**.

There is no BWC footage of this incident **(Board Review 06)**.

Det. Nin testified that § 87(2)(b)'s autistic child was covered in urine and feces, and that they found him lying in a bed that also contained urine and feces. Det. Nin denied saying that § 87(2)(b)'s child smelt like "shit" **(Board Review 08)**.

Lt. Degree testified that he did not recall any officer saying, "smells like shit" **(Board Review 09)**.

Det. Sehl testified that he did not hear any officer state that § 87(2)(b)'s child smelt like "shit" **(Board Review 07)**.

§ 87(2)(b) alleged that Det. Nin said to another officer that her child "smelt like shit." Det. Nin denied making the statement. Furthermore, Lt. Degree did not recall any officer making the statement and Det. Sehl did not hear any officer make the statement. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation G – Abuse of Authority: Lieutenant Steven Degree threatened to notify Administration for Children's Services.

§ 87(2)(b) alleged that while the officers searched the residence, Lt. Degree repeatedly threatened to call ACS. Later that day at approximately 3 p.m., after the officers left the location, an ACS worker arrived at § 87(2)(b)'s home and inspected the premises. ACS ultimately took no action **(Board Review 03)**.

There is no BWC footage of this incident **(Board Review 06)**.

Lt. Degree testified that upon entering the apartment he noticed that there was a lot of clothing on the floor, and it was very disheveled. Lt. Degree was unable to see the floor. There were a number of children sleeping on top of clothing, and clothing was on top of them. Lt. Degree walked into the back bedroom. Inside, there was a child laying in a bed with human feces in it. The search of the apartment yielded three brown pills, which Lt. Degree believed were narcotics, though he did not know specifically which narcotic. Lt. Degree informed § 87(2)(b) that because of the condition of the apartment because there was a child laying in feces, and because it was difficult to get to the refrigerator through the clothes, he was mandated to call ACS **(Board Review 09)**.

Det. Sehl and Det. Nin's statements were generally consistent with Lt. Degree's statement. Each officer testified that narcotics were discovered in the apartment, that the apartment was excessively dirty, with clothing, garbage, and old left-out food on the floor. Furthermore, Det. Sehl testified that there was no food in the refrigerator or the cupboards. Det. Sehl testified that he generated the ACS notification as he was required to by the Patrol Guide due to the presence of narcotics and the overall state of the apartment **(Board Review 07, 08)**.

The voucher prepared by Det. Sehl on October 7, 2021, shows that Det. Sehl found three unknown round tablets wrapped in a dollar bill, along with paraphernalia with green residue **(Board Review 12)**.

The ACS notification, prepared by Det. Sehl on October 7, 2021, shows that Det. Sehl notified ACS regarding narcotic sales from the apartment, inadequate food and shelter, and malnutrition/failure to thrive. In the comments section, Det. Sehl wrote the following:

- Narcotics sales from apartment.
- Large amount of cockroaches in apartment. Mother states, “That’s not my problem.”
- Garbage bags full of garbage left all around apartment.
- Dirty clothes and hoarding. Unsafe access in and out of apartment.
- No food in fridge or cupboards **(Board Review 10)**.

NYPD Patrol Guide, Procedure 215-03 states officers must notify ACS when they believe a child has been abused, neglected, or maltreated. The Patrol Guide defines a neglected child as a child under 18 years old whose parent or person legally responsible for their care creates or allows to be created a substantial risk of physical injury other than by accidental means **(Board Review 11)**.

§ 87(2)(g)

[REDACTED]

Allegation H – Abuse of Authority: Detective Donald Sehl failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) alleged that after the officers searched her apartment, that they left the location without providing her a business card **(Board Review 03)**.

§ 87(2)(g)

[REDACTED]

There is no BWC footage of this incident **(Board Review 06)**.

Det. Sehl testified that he believed that he provided a business card to § 87(2)(b) when the officers left. He believed he did as he typically does during search warrants, but did not have a specific recollection of doing so. Det. Sehl had business cards on him **(Board Review 07)**.

Det. Nin did not recall if Det. Sehl provided § 87(2)(b) with a business card **(Board Review 08)**.

§ 87(2)(b) alleged that Det. Sehl did not provide § 87(2)(b) with a business card. Det. Sehl testified that he believed that he did provide § 87(2)(b) with a business card, and Det. Nin did not recall if Det. Sehl provided § 87(2)(b) with a business card. § 87(2)(g)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the second CCRB complaint to which § 87(2)(b) has been a party and she has been named a victim in one additional allegation: **(Board Review 13)**

- § 87(2)(b)
- [REDACTED]

- Det. Sehl has been a member of the NYPD for 10 years and has been a subject in six additional CCRB complaints and 14 allegations, five of which were substantiated. § 87(2)(g)
- 201302532 involved substantiated allegations of abuse – frisk and abuse – stop. The Board recommended instructions and the NYPD imposed instructions.
- 201404440 involved a substantiated allegation of abuse – frisk. The Board recommended formalized training and the NYPD formalized training.
- 201602469 involved substantiated allegations of abuse – frisk and abuse – stop. The Board recommended command discipline A and the NYPD imposed command discipline A.
- Lt. Degree has been a member of the NYPD for 15 years and has been a subject in 13 additional CCRB complaints and 31 allegations, four of which were substantiated. § 87(2)(g)
- 201310243 involved substantiated allegations of abuse – frisk, abuse – stop, and abuse – search of person. The Board recommended command discipline B and the NYPD command discipline B.
- 202007066 involved a substantiated allegation of abuse – failure to provide RTKA card. The Board recommended command discipline A and the NYPD command discipline A.
- Det. Nin has been a member of the NYPD for 10 years and has been a subject in 10 additional CCRB complaints and 27 allegations, two of which were substantiated. § 87(2)(g)
- 201214417 involved a substantiated allegation of abuse – refusal to provide name/shield number. The Board recommended command discipline and the NYPD imposed instructions.
- 201506894 involved a substantiated allegation of Abuse – Refusal to obtain medical treatment. The Board recommended Command Discipline A. There is no NYPD disposition listed.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming false arrest, false imprisonment, battery, assault, police cover-up, police conspiracy, negligence, violation of civil and constitutional rights, malicious prosecution, and negligence and seeking \$75,000 as redress (**Board Review 14**). § 87(2)(b)'s attorney has been uncooperative in submitting the 50H transcript.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 6

Investigator: Inv. Thomas Juliano Inv. Thomas Juliano 07/27/2022
Signature Print Title & Name Date

Squad Leader: __Jessica Peña IM Jessica Peña 7/27/2022
Signature Print Title & Name Date